

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING, REPEALING AND RECREATING VARIOUS SECTIONS WITHIN CHAPTER 8.60, NUISANCES, OF TITLE 8, HEALTH AND SAFETY, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That various sections within Chapter 8.60, Nuisances, of Title 8, Health and Safety, of the code of the City of Cheyenne, Wyoming, are hereby amended, repealed and recreated as set out in this ordinance. Sections currently existing within Chapter 8.60 not set out in this ordinance remain unchanged.

Section 2. That Section 8.60.020, Nuisance defined, is amended as follows:

8.60.020 ~~Nuisance defined.~~ Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

"Abate" or "abatement" means action taken to remove or alleviate a nuisance, including, but not limited to, demolition, removal, repair, boarding or securing of property.

"Board of Adjustment" means the board created pursuant to Section 2.84.070 of the Cheyenne city code. The board shall hear appeals under Section 8.60.142 of this chapter.

"Notice to abate" means a written notice prepared by the nuisance officer to provide notice of the nuisance and the steps deemed necessary to abate the nuisance.

A ~~"nuisance"~~ "Nuisance" means any use or nonuse of property, real or personal, which produces to others a material injury, annoyance, inconvenience or discomfort, and which endangers life or health, or gives offense to the senses of persons with normal or average sensibilities, and/or ordinary tastes and habits.

"Nuisance officer" means the code enforcement officer, one or more peace officers, pursuant to Chapters 2.20 and 2.28 of the city code, or community service officers, pursuant to Chapter 2.29 of the city code, within the Cheyenne Police Department who are authorized to enforce the provisions of this chapter.

"Occupant" means any person occupying the property.

"Owner" means the record owner of the property as indicated in the files of the County Clerk and ex officio registrar of deeds for Laramie County or the files of the Laramie County Assessor.

"Property" means any real property within the city that is the subject of a notice to abate issued by the nuisance officer.

Section 3. That Section 8.60.090(A), Snow, ice or slush as a nuisance is repealed and recreated as follows:

8.60.090 Snow, ice or slush as a nuisance.

A. ~~Sidewalks. Snow, ice or slush on a sidewalk is a nuisance, whether the sidewalk is on a vacant lot or a lot containing a building of any kind. For purposes of this subsection, sidewalk includes any space where a sidewalk should or may be constructed. In the event of a dispute as to where a sidewalk should or may be constructed, the chief of police shall make the determination. Owner(s) and/or, if appropriate, the occupant(s) of property abutting a sidewalk~~

~~shall within a twenty-four (24) hour period, after a snowfall, remove snow, ice or slush from such sidewalks and maintain them free of the same. If any owner(s) and/or, if appropriate, the occupant(s) of the property fails to comply with this subsection, the nuisance officers may, after a reasonable effort to contact the owner and/or occupant either in person or by telephone, have the snow, ice or slush removed and charge the owner(s) and/or, as appropriate, the occupant(s) for the costs thereof as set forth in Section 8.60.160.~~

A. Sidewalks. Snow, ice or slush on a sidewalk is a nuisance, whether the sidewalk is on a vacant lot or a lot containing a building of any kind. Every person who owns or occupies any property abutting a right-of-way that contains a sidewalk shall, within a twenty-four (24) hour period after a snowfall, remove snow, ice and slush from each such sidewalk and maintain each such sidewalk free of the same. If any owner or occupant fails to comply with this subsection, the nuisance officer may, after a reasonable effort to contact the owner or occupant either in person or by telephone, have the snow, ice or slush removed and charge the owner or occupant for the costs thereof as set forth in Section 8.60.160 of this chapter.

Section 4. That Section 8.60.100, Bees as a nuisance, is amended as follows:

8.60.100 Bees as a nuisance.

All bees within the city are a nuisance except for apiaries kept in strict compliance with the Wyoming Apiculture Act of 1983, Wyo. Stat. Sections ~~11-7-101~~ 11-7-130 through 11-7-407, as amended. Persons keeping bees within the city shall provide certification of compliance with the above mentioned statutes to the nuisance officers upon request. If certification is not provided, nuisance officers may declare the presence of bees a nuisance.

Section 5. That Section 8.60.110, General notice, is repealed as follows:

8.60.110 General notice.

~~Nuisance officers shall publish, in a newspaper designated by the governing body, the following notices:~~

~~A. On or before June 15th of each year, a notice which states:~~

~~1. That nuisance officers will begin their annual inspection for nuisances;~~

~~2. That refrigerators, freezers, washers and dryers with doors or lids intact which are stored outside a dwelling shall be removed immediately by the owner(s) and/or, as appropriate, the occupant(s) of the property where they are located;~~

~~3. That if any property owners and/or occupants fail to abate any nuisance, other than described in subsection A of this section, within five working days after notification, or ten (10) working days for undeveloped property equal to or greater than a one-half acre in size the city or its agents will abate the nuisance and charge the costs thereof plus an administrative fee in the amount of fifty (50) percent of the abatement costs, against the owner(s) or occupant(s) of the property involved; and~~

~~4. That if such costs are not paid within thirty (30) days from notification, the city will take appropriate action to collect the same, including, but not limited to, referral to a collection agency, reducing the costs to judgment or making the costs a special assessment or lien on the property involved.~~

~~B. The city shall provide a public notice which states:~~

~~1. That snow, ice or slush on a sidewalk, including any space where a sidewalk should or may be constructed, shall be removed within a twenty-four (24) hour period after a snowfall from sidewalks by the owner(s) and/or, occupant of property abutting sidewalks;~~

~~2. That the piling of snow, ice or slush from sidewalks, parking areas or driveways in a manner that creates a hindrance to pedestrians or vehicles in the public streets is prohibited, except from those properties with zero foot setbacks in the central business zone;~~

~~3. That if any property owners and/or, if appropriate, the occupant(s) violate Section 8.60.090, the nuisance officers may, after a reasonable effort to contact the owner and/or occupant either in person or by telephone, abate such nuisance and charge the costs thereof, plus an administrative fee in the amount of fifty (50) percent of the abatement costs, against the owners and/or, as appropriate, the occupant(s) of the property involved; and~~

~~4. That if such costs are not paid within thirty (30) days from notification, the city will take appropriate action to collect the same, including, but not limited to, referral to a collection agency, reducing the costs to judgment or making the costs a special assessment or lien on the property involved.~~

Section 6. That Section 8.60.120, Abatement authorized, is amended as follows:

8.60.120 Abatement authorized.

~~Subject to the procedures specified in this chapter, Nnuisance officers are authorized to abate any nuisance existing in the city and to perform all other lawful acts and duties appropriate to the enforcement of this chapter. Within this chapter “nuisance officer(s)” is defined as the inspector(s) of the nuisance division and other persons as may be designated by the mayor.~~

Section 7. That Section 8.60.130, Right of entry, is amended as follows:

8.60.130 Right of entry.

~~Subject to the procedures specified in this chapter, Nnuisance officers and the city’s agents are authorized to enter upon any property or premises, excluding a dwelling unit, at any reasonable time for the purpose of inspecting properties, abating a nuisance or performing other duties as described in this chapter.~~

Section 8. That Section 8.60.140, Notice to abate, is repealed and re-created as follows:

8.60.140 Notice to abate.

~~A. Notice Contents. A notice to abate a nuisance, other than identified in Sections 8.60.070 and 8.60.090 where the identity of the property owner and/or occupant is or can become known to the city through the exercise of reasonable efforts, will be sent by regular mail to each property owner and/or occupant. If the information cannot become known to the city through the exercise of reasonable efforts, then notice shall be posted on any land or other property within the city upon which a nuisance is discovered to exist. The notice shall include the following information:~~

- ~~1. Citation of applicable provisions of the city code;~~
- ~~2. Nature of violation;~~
- ~~3. Legal description or street address, as appropriate, for the property in violation;~~
- ~~4. Proper methods of abatement;~~
- ~~5. Requirement to comply within the appropriate five or ten (10) working days of issue of notice or posting;~~
- ~~6. A statement that the city may abate any nuisance arising from a repeat violation of any section of this chapter within the twelve (12) month period following the issuance or posting of a notice to abate without sending or posting additional notice;~~
- ~~7. A statement that it is illegal to remove the posted notice from the property until the nuisance has been abated and the nuisance office notified; and~~
- ~~8. The name, signature, telephone number and title of the posting or issuing official.~~

~~B. Abatement Upon Repeat Violation. The chief of police is authorized to abate any nuisance arising from a repeat violation of any section of this chapter within the twelve (12) month period following the issuance of a notice to abate without sending any additional notice.~~

~~C. Extensions for Abatement. Extensions for nuisance abatement will be considered by the chief of police upon receipt of written request for extension. The written request must be submitted prior to the reinspection deadline.~~

A. Service. Except for those nuisances described in Sections 8.60.050, 8.60.070, and 8.60.090 of this chapter, upon making a determination that a nuisance exists upon a property, the nuisance officer shall prepare and issue a notice to abate the nuisance. The notice to abate shall be served in the following manner:

1. The notice to abate shall be sent by certified mail, return receipt requested, to the owner of the property subject to the abatement; and

2. The notice to abate shall be posted on the property subject to the abatement. The posting officer shall make a written record of the date, time and place the notice to abate was posted at or upon the property.

B. Date of Service. Service of the notice to abate shall be deemed completed upon the expiration of three business days following the date of mailing of the notice to abate by certified mail.

C. Content. The notice to abate shall contain not less than the following information:

1. Citation of applicable provisions of the city code;

2. A statement which clearly and concisely describes the nature of the violation, including the date and time of the inspection of the property;

3. Legal description or street address, as appropriate, of the property or properties subject to the notice to abate;

4. Proper method of abatement to correct the violation;

5. Possible consequences for failure to comply;

6. The compliance date by which the nuisance must be abated. The owner or occupant shall have ten (10) business days from the date of service of the notice to abate:

a. To have the nuisance abated (as specified in Section 8.60.141(A) of this chapter);

b. To ask for an extension of time to complete the abatement (as specified in Section 8.60.141(B) of this chapter); or

c. To appeal the finding that a nuisance exists at the property (as specified in Section 8.60.142 of this chapter).

7. A statement that it is illegal to remove the posted notice to abate from the property until the nuisance has been abated and the nuisance officer has been notified; and

8. The name, title, business telephone number and business e-mail address of the posting or issuing official.

Section 9. That Section 8.60.141, Abatement by owner or occupant, is created as follows:

8.60.141 Abatement by owner or occupant.

A. The owner or occupant of the property subject to the abatement, shall abate the nuisance, and provide proof of abatement to the nuisance officer who issued the notice to abate within ten (10) business days from the date of service of the notice to abate.

B. In the event the owner or occupant of the property subject to the abatement is unable to abate the nuisance within the time specified in the notice to abate, but has undertaken substantial steps toward abatement, the nuisance officer who issued the notice to abate may grant an extension of time to abate the specified nuisance, subject to such conditions as may be specified by that nuisance officer.

1. A request for an extension of time to abate a nuisance must, within ten (10) business days from the date of service of the notice to abate, be either:

a. Filed in writing with the nuisance officer who issued the notice to abate; or

b. Filed electronically pursuant to an e-mail properly addressed to the official business e-mail address of the nuisance officer who issued the notice to abate.

2. The filing of a request for extension of time to abate a nuisance constitutes a waiver of the right to appeal the finding of the nuisance officer that a nuisance exists.

3. An extension of time to abate a nuisance shall be valid only if the extension is granted pursuant to a written notice specifying the new compliance date and the terms and conditions of the extension of time. No extension may be granted for a period in excess of thirty (30) days from the compliance date specified in the original notice to abate. No more than one extension may be granted.

4. The filing of a request for extension of time to abate a nuisance shall not constitute a notice of appeal under Section 8.60.142 of this chapter.

5. In the event an extension of time is not requested, a nuisance is not fully abated on or before the compliance date stated in the written notice of extension, or a notice of appeal is not timely filed in the office of the development department director under Section 8.60.142 of this chapter, the right to contest the nuisance will have been waived and the city shall have the right to enter the property and abate the nuisance found thereon in accordance with Section 8.60.150 of this chapter.

Section 10. That Section 8.60.142, Appeal process; Hearing, is created as follows:

8.60.142 Appeal process; Hearing.

A. The owner or occupant of the property subject to a notice of abatement may, within ten (10) business days from the date of service of the notice of abatement, file a notice of appeal, in writing, in the office of the city development department director. A notice of appeal may not be filed electronically.

1. In the event a notice of appeal is not filed within the time specified in subsection A., of this section, the owner and occupant shall be deemed to have waived the right to appeal and shall be deemed to have admitted the validity of the notice to abate and the accuracy of all findings stated therein.

2. In the event a notice of appeal is filed within the time specified in subsection A., of this section, the notice of appeal automatically stays the duty to comply with the notice to abate issued pursuant to Section 8.60.140 of this chapter.

B. Upon the filing of a timely notice of appeal, the Board of Adjustment shall conduct a hearing within forty-five (45) days after the date of filing of the notice of appeal. The Board of Adjustment shall issue a written notice of hearing, in the form provided by the Wyoming Administrative Procedure Act, to the appealing party, not less than ten (10) business days prior to the date of the hearing.

1. The hearing may be continued only with the consent of the Board of Adjustment and the appealing party.

C. The hearing shall be conducted in accordance with the contested case provisions of the Wyoming Administrative Procedure Act. The hearing shall also be subject to state laws applicable to public meetings.

D. Upon review of the evidence submitted at the hearing, the Board of Adjustment shall affirm or reverse the finding that a nuisance exists at the property at issue.

1. In the event the Board of Adjustment affirms the finding that a nuisance exists at or upon the property or properties that are the subject of the appeal, the Board of Adjustment shall enter a written order containing such findings and conclusions as shall be appropriate, setting forth the terms and conditions of abatement, and setting forth a schedule for the abatement of any such nuisance as is determined to exist, with a compliance date not to exceed thirty (30) days from the date of the written order. The written order shall be filed in the office of the development department director and served upon the parties to the appeal by mail.

2. In the event the Board of Adjustment reverses the finding that a nuisance exists at or upon the property or properties that are the subject of appeal, the Board of Adjustment shall enter a written order containing such findings and conclusions as shall be appropriate. The written order shall be filed in the office of the development department director and served upon the parties to the appeal by mail.

E. Any owner or occupant of property aggrieved by a decision of the Board of Adjustment may seek judicial review in the manner provided by the Wyoming Administrative Procedure Act and the Wyoming Rules of Appellate Procedure.

Section 11. That Section 8.60.150, Abatement, is repealed and re-created as follows:

8.60.150 — Abatement.

~~If the identified nuisance is not abated within the time limit stated in the notice to abate, the nuisance officers may abate the nuisance or issue an authorization to abate nuisance to an abatement contractor, or its designated agents, who shall proceed to abate the nuisance.~~

8.60.150 Abatement by the city.

In the event the nuisance is not abated within the time specified in Sections 8.60.141(A), 8.60.141(B) or 8.60.142(D) of this chapter, the city shall have the right to enter the property and abate the nuisance found thereon or authorize a private contractor or other designated agent to do so.

Section 12. That Section 8.60.160, Notification of costs, is repealed and re-created as follows:

8.60.160 Notification of costs.

~~A. After a nuisance abatement by a nuisance officer or authorized contractor, the officer shall complete a statement of costs. Within this section, "abatement" includes any action undertaken by a nuisance officer or authorized contractor to achieve a nuisance abatement after five working days of the notice to abate or ten (10) working days for undeveloped property equal to or greater than one-half acre in size. The statement shall include the costs of the abatement or other action referred to above, costs involved in issuing the notice and/or posting the property, plus an administrative fee in the amount of fifty (50) percent of the abatement costs.~~

~~B. The nuisance officer shall notify the owner(s) and/or, as appropriate, the occupant(s) of the property involved by certified mail, return receipt requested, of the costs being assessed. The nuisance officer shall further give notice that, unless payment of the costs is made within thirty (30) days after notification, the city will take appropriate action to collect the same,~~

~~including, but not limited to, referral to a collection agency, reducing the costs to judgment, or making the costs a special assessment or lien on the property involved.~~

~~C. If an abatement for junk/trash/appliances is completed by the nuisance officer using sanitation services, the sanitation department is authorized to bill directly the property owner's board of public utilities' account for the property for the abatement costs, if such account exists.~~

~~D. If an abatement for grass/weeds or snow/ice is completed by the nuisance officer using a contractor's services, the police department is authorized to bill directly the property owner's board of public utilities' account for the property for the abatement costs, if such account exists.~~

8.60.160 Costs of abatement; notice of assessment.

A. Upon completion of abatement by the city, the city shall complete a statement of costs. The statement shall include the costs of abatement and any other expenses incurred by the city, plus an administrative fee in the amount of fifty percent (50%) of the abatement costs.

B. The city shall send written notice of the city's costs of the abatement to the owner of the property by certified mail, return receipt requested.

C. If abatement for junk, trash, or appliances is completed by the city using the city's sanitation services, the sanitation division is authorized to bill the costs of any such abatement, plus the administrative fee provided by subsection A., of this section, to the owner of the property that is the subject of the abatement.

D. If the city engages an independent contractor for abatement of grass, weeds, snow, or ice, the police department is authorized to bill the costs of the abatement plus the administrative fee provided by subsection A., of this section, to the owner of the property that is the subject of the abatement.

Section 13. That Section 8.60.170, Nuisance files to be maintained – Fines, is repealed and re-created as follows:

~~8.60.170 Nuisance files to be maintained – Fines.~~

~~**A. The nuisance division shall maintain a database record of all nuisance violators, the nature of their violations and the frequency of the violations.**~~

~~**B. For the second nuisance abated after the initial nuisance within the twelve (12) month period following the initial nuisance abatement, a fifty (50) percent fine calculated on the total charges for the abatement cost plus the administrative fee shall be assessed.**~~

~~**C. For any further nuisances abated after the second nuisance within the twelve (12) month period following the initial nuisance abatement, a fine of one hundred (100) percent of the total of the abatement cost with the added administrative fee shall be assessed.**~~

~~**D. The chief of police may request the city attorney's office file misdemeanor charges against a repeat nuisance violator if the owner of the property has failed to abate a nuisance for the same property within the requested time more than six times in one twelve (12) month period.**~~

8.60.170 Nuisance files to be maintained.

The Cheyenne Police Department shall maintain a database record of all nuisance violations, and the nature of the violations as prescribed by state law and city code.

Section 14. That Section 8.60.180, Filing of lien, is amended as follows:

8.60.180 Collection of costs of abatement; Filing of lien.

If an owner or occupant of property to which a statement of costs has been sent fails to pay the costs of abatement within thirty (30) days after notification, the city attorney may, upon the request of the chief of police, file an appropriate lien with the county clerk and ex officio registrar of deeds for Laramie County. The lien shall contain the legal description of the property involved, the amount of the unpaid bill, and a notice that the city claims a lien for ~~this amount as well as for all charges for abating such nuisance subsequent to the period covered by the bill~~ its costs of abatement. A lien for abatement costs may be foreclosed in accordance with the laws of the state of Wyoming. **In addition, the city may pursue any remedies provided by law including assignment of the claim for costs of abatement to a collection agency.**

Section 15. That Section 8.60.190, Prosecution as a misdemeanor, is amended as follows:

8.60.190 Prosecution as a misdemeanor.

A. In addition to the authority to abate nuisances provided by this chapter, the nuisance officer has the authority to ~~prosecute any nuisance as a misdemeanor in municipal court~~ **issue citations for violations of this chapter.** It is unlawful for any person to violate any provision of this chapter and any violation is punishable pursuant to the general penalty provisions contained in Section 1.24.010 of the city code.

B. A misdemeanor ~~charge citation~~ shall not be ~~filed issued~~ unless, a notice to abate pursuant to Section 8.60.140 has been issued to the owner ~~or~~ **and** posted on the property and the ~~property owner(s) and/or, if appropriate, the occupant(s) have failed to abate the nuisance~~ **nuisance has not been abated** within the time specified in the notice, or a **failure to abate** the nuisance is as identified in Sections ~~8.60.050~~, 8.60.070 or 8.60.090 ~~and where~~ no posting is required prior to abatement.

Section 16. That Section 8.60.200, Emergency abatement, is created as follows:

8.60.200 Emergency abatement.

If a nuisance exists on any property in the city that presents a substantial risk to public health or safety and if the chief of police, or designee, makes a determination that the nuisance must be abated on an emergency basis, the chief of police may authorize the nuisance officer to immediately proceed to abate the nuisance without notice or hearing. The determination of costs shall be subject to the provisions of Section 8.60.160 of this chapter.

Section 17. That this ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

Richard L. Kaysen, Mayor

(SEAL)
ATTEST:

Carol Intlekofer, City Clerk